ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

Title

1. These by-laws may be cited as the City of Masvingo (Abandoned Vehicles) By-laws, 2025.

Application

2. These by-laws shall apply to all the areas under the jurisdiction of City of Masvingo.

Interpretation

3. In these by-laws—

"abandoned vehicle" means a vehicle that has remained on public property or any other place open to travel by the public without the consent of the council for a period of 48 hours after Council or Zimbabwe Republic Police has affixed a written notice to the vehicle;

"authorised person" means Council employees and or agents to enforce these by-laws; and

a member of the Zimbabwe Republic Police;

"clamp" means to immobilise a motor-vehicle by means of a wheel clamp;

"Council" means City of Masvingo;

"designated area" means all areas under the jurisdiction of City of Masvingo where abandoned vehicles are disposed such as landfills and scrap yards;

"motor-vehicle" means any vehicle propelled by mechanical or electrical power and intended or adapted for use or capable of being used, on roads;

"towing away" means the removal by an authorised person of motor vehicle that is parked or stationary in violation of these by-laws.

Disposal

4. (1) No vehicle shall be placed, left at any open place, road side or any land for the purpose of dumping without the consent of council.

(2) If the abandoned vehicle is left unattended to after 48 hours, council shall endeavour to look for the owner of the abandoned vehicle and give notice to him or her by way of a written document.

(3) Upon heeding the notice from council, the owner of the abandoned vehicle shall pay to council towing and storage fees.

(4) Should the owner of the abandoned vehicle fail to remove their vehicle within three working days, council shall tow away the abandoned vehicle to a storage facility at the expense of the owner.

(5) If the vehicle is abandoned in an inconvenient place, council shall tow away the abandoned vehicle within 24 hours, to a storage facility at the expense of the owner.

(6) If the owner of the abandoned vehicle fails to redeem their abandoned vehicle for 60 days, council shall dispose of the vehicle through an advertised auction to recover expenses.

Assessment of abandoned vehicle

5. (1) Prior to the removal or towing away of the vehicle to a storage facility, council and the Zimbabwe Republic Police shall make an assessment of the condition of the abandoned vehicle.

(2) Any such observed defects, missing vehicle parts and broken gadgets are recorded into the inventory sheet and communicated to the owner of the abandoned vehicle where he or she is known and also copied to Zimbabwe Republic Police.

(3) Council is not liable to any claim on defects, missing vehicle parts and broken gadgets arising from the enforcement of these by-laws.

Designation

6. Council shall publish in any newspaper circulating within the council controlled area, any place designated as a secure compound.

Offences and penalties

7. (1) No person shall—

(a) obstruct an authorised person in the exercise of his or her duties under these laws; or

(b) remove or cause to be removed a wheel clamp; or

(c) remove or cause to be removed a motor vehicle from the secure compound.

(2) Any person found in contravention of these by-laws shall be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

Section	Description	Fees (US$)
4	Tow away fees: Light motor vehicles Heavy motor vehicles	$100 $250
4	Storage fees: Light motor vehicles Heavy motor vehicles	$30 per day $50 per day

SECOND SCHEDULE

OFFENCES AND PENALTIES

Section	Description	Fees (US$)
7 (a)	Obstruct an authorised person in the exercise of his or her duties under these laws.	$100
7 (b)	Remove or cause to be removed a wheel clamp.	$0,00
7 (c)	Remove or cause to be removed a motor vehicle from the secure compound.	$0,00

The fees and penalties can be paid at the Prevailing Interbank Rate.